

ASCII MASTER FLOW - PANEL 1/12: Three regimes and classification

CENTRAL QUESTION: WHICH CONSTITUTIONAL FAILURE EXISTS?

security threatened by war/external aggression/armed rebellion -> ARTICLE 352

State government cannot be constitutionally carried on -> ARTICLE 356

financial stability/credit threatened -> ARTICLE 360

Part XVIII is constitutional self-defence, not extra-constitutional rule.

METHOD: classify -> threshold -> procedure -> effects -> safeguards -> exit.

ASCII MASTER FLOW - PANEL 2/12: Article 352 threshold and territorial scope

GRAVE EMERGENCY + "security of India or any part of the territory thereof"

- > ground: war | external aggression | armed rebellion
- > actual occurrence not necessary where imminent danger exists
- > proclamation: whole India OR specified part
- > no textual State-only minimum territorial floor

LOCALISED ATTACK: geography does not trigger 356; test 352 threshold, while ordinary security law may suffice. Terrorism != automatic external aggression.

ASCII MASTER FLOW - PANEL 3/12: Article 352 procedure

Union Cabinet decision communicated in writing -> President

-> laid before both Houses -> approval within one month

-> majority of total membership + 2/3 present and voting

-> six months from second resolution -> same-majority renewals

DISSOLVED LOK SABHA: Rajya Sabha approval bridges only to 30 days from the reconstituted Lok Sabha's first sitting.

EXIT: President revokes; Lok Sabha simple-majority disapproval forces revocation; 1/10 of total Lok Sabha membership -> special sitting within 14 days.

ASCII MASTER FLOW - PANEL 4/12: History and amendment arc

26 Oct 1962 external aggression -> 10 Jan 1968 revocation
3 Dec 1971 external aggression -> 27 Mar 1977 revocation
25 Jun 1975 internal disturbance -> 21 Mar 1977 revocation
38TH AMENDMENT (1975): former Articles 352(5), 356(5) and 360(5)
made presidential satisfaction, proclamation validity and continuance
final/conclusive and non-justiciable.
42ND AMENDMENT (1976; territorial changes effective 3 Jan 1977):
Article 352(1) enabled a specified-part proclamation; provisos to Articles
353, 358 and 359(1A)/(2) permitted or controlled extra-area effects only
where linked activities threatened the security of India or any part.
44TH AMENDMENT (1978; safeguards effective 20 Jun 1979):
Article 352(1)/(9) used "armed rebellion"; 352(3) required written Cabinet
decision; 352(4)-(8) added one-month, special-majority, renewal and Lok Sabha
disapproval safeguards; former finality clauses were removed/replaced;
Article 358(1)-(2) narrowed Article 19 effect and added recital/nexus;
Article 359(1)/(1A)/(1B) protected Articles 20-21 and added recital/nexus.

ASCII MASTER FLOW - PANEL 5/12: Review and federal effects

MINERVA MILLS v UNION OF INDIA (1980): Article 352 condition precedent is reviewable for mala fides, absurd/perverse satisfaction and wholly extraneous/irrelevant grounds. LIMIT: no judicial reweighing of sufficiency or merits substitution. ARTICLE 353: Union directions + parliamentary non-Union-field competence. ARTICLE 250: State List law with six-month post-emergency tail. ARTICLE 123: ordinance may cover temporarily available State-field competence. PARTIAL AREA: extra-State effect only "if and in so far as" linked security threat.

ASCII MASTER FLOW - PANEL 6/12: Revenue, terms and rights

ARTICLE 354: modify Articles 268-279 temporarily; order laid before Parliament;
not beyond financial year in which Emergency ceases.

TERMS: Parliament may extend Lok Sabha/Assembly one year at a time; never beyond
six months after cessation.

ARTICLE 358: automatic Article 19 rule; war/external aggression; recital/nexus.

ARTICLE 359: presidential enforcement order; specified rights/area/period;
Articles 20 and 21 excluded; rights not textually erased.

ASCII MASTER FLOW - PANEL 7/12: Liberty correction

ADM JABALPUR v SHIVKANT SHUKLA (1976): majority denied the habeas corpus route to enforce Article 21 during the operative Article 359 order

- > JUSTICE H.R. KHANNA dissent: life/liberty cannot depend wholly on executive permission; legality survives emergency

- > 44TH AMENDMENT, Article 359: Articles 20 and 21 cannot be included in an enforcement-suspension order

- > K.S. PUTTASWAMY v UNION OF INDIA (2017, nine judges): held the ADM Jabalpur majority seriously flawed and expressly overruled it

CURRENT RULE: 20/21 remain enforceable; ADM Jabalpur is warning, not authority.

ASCII MASTER FLOW - PANEL 8/12: Articles 355, 365 and 356 trigger

ARTICLE 355: Union duty - protection + constitutional government

ARTICLE 365: direction breach may support an inference; never automatic

ARTICLE 356: Governor report OR otherwise + relevant material ->
government cannot be carried on according to Constitution

NOT ENOUGH ALONE: local attack | law/order failure | maladministration |
policy disagreement | untested majority claim

LAST RESORT: assistance/warning/floor test where feasible.

ASCII MASTER FLOW - PANEL 9/12: Article 356 procedure and effects

APPROVAL: two months, simple majority

CONTINUANCE: six months from issue; renew every six months; max three years

BEYOND ONE YEAR: Article 352 Emergency in all India or all/part of the State +
Election Commission of India certificate that election difficulty requires it

EFFECTS: State executive assumed; ministry displaced; legislative power by/under
Parliament; Article 357 delegation/expense; laws continue until changed

EXACT ARTICLE 356(1) PROVIS0: President cannot assume High Court powers or
suspend any constitutional provision relating to High Courts.

OTHER LIMITS: Assembly not automatically dissolved; no direct Fundamental
Rights suspension.

ASCII MASTER FLOW - PANEL 10/12: Bommai and post-1994 restraint

S.R. BOMMAI v UNION OF INDIA (1994): review | relevant material | floor test | no premature dissolution | restoration | federalism | secularism | no partisan dismissal

RAMESHWAR PRASAD v UNION OF INDIA (2006): Bihar dissolution invalid; no restoration after the election process had advanced

DECLINE: legal risk + coalition dependence + regional parties + scrutiny

SARKARIA COMMISSION ON CENTRE-STATE RELATIONS (1983-88): warning where feasible, floor test and Article 356 only as last resort.

PUNCHHI COMMISSION ON CENTRE-STATE RELATIONS (2007-10): reasoned reports, floor testing and restrained/localised response; recommendations are not law.

MANIPUR: 13 Feb 2025 proclamation -> revoked 4 Feb 2026 by S.O. 509(E).

ASCII MASTER FLOW - PANEL 11/12: Article 360 and comparison

ARTICLE 360: financial stability/credit of India or part threatened

- > two months, simple majority -> no renewal cycle / no fixed maximum
- > President may vary/revoke
- > Article 360(3): Union directions on State financial propriety
- > Article 360(4)(a)(i): State-service salary/allowance reductions
- > Article 360(4)(a)(ii): specified State Money Bills or other Bills governed by Article 207 may be directed to be reserved for Presidential consideration after passage by the State Legislature
- > Union salaries, expressly including Supreme Court/High Court judges

STATUS: never proclaimed; Article 293 regulates State borrowing and specified Union-consent cases, while 1991 crisis management was not Article 360.

352 special/renewable | 356 simple/3-year max | 360 simple/no renewal.

ASCII MASTER FLOW - PANEL 12/12: PYQ route and qualified verdict

2018 GS-II: 360 threshold -> approval -> directions -> never-used verdict
2018 Prelims: Article 356(1)(b) legislature by/under Parliament; key withheld
2020 GS-II: ordinary centralising statutes != formal emergency basis
2023 Prelims: Article 355 Union duty + Article 22 detention safeguards +
former Prevention of Terrorism Act, 2002; official key withheld
2023 GS-II: S.R. Bommai review/floor-test rule + commission safeguards
2024 Prelims: Part XVIII constitutional emergency chapter; official key D held
ANSWER: claim -> named Article/case -> mechanism -> analysis -> qualification
VERDICT: exceptional power is legitimate only when necessary, reviewable,
proportionate and directed toward restoration of ordinary democracy.